

24STCV23093 24STCV23093

County: los-angeles

Division: Civil Law and Motion

Department: 414

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Case Number: 24STCV23093 Hearing Date: August 14, 2026 Dept: 414

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FN-OSM, Inc. v. Laby Property Group, LLC

Friday,

August 14, 2026

[TENTATIVE]

ORDER TAKING OFF CALENDAR DEMURRER OF CROSS-DEFENDANT, FN-OSM, INC., TO THE CROSS-COMPLAINT (0365)

The first amended complaint

alleges Plaintiff was required to terminate a lease after water intruded into the premises causing damage to Plaintiff's business. Plaintiff alleges one cause of action for breach of contract.

The Cross-Complaint alleges claims

for (1) apportionment of fault, (2) indemnification, (3) declaratory relief, and (4) breach of contract.

Cross-Defendant demurs to the first,

second, and third causes of action on grounds of uncertainty and failure to state a cause of action. Cross-Complainant argues in opposition that the demurrer is procedurally defective, and Cross-Defendant did not meet and confer as required by statute. There is no ambiguity.

As of June 23, 2026,

Cross-Defendant did not file a reply brief.

On June 25, 2026, the Court continued the hearing because of moving party's failure to meet and confer as required by statute. (Code Civ. Proc., § 430.41 (a). The Court ordered demurring party to file a declaration stating that the parties met and conferred, and the parties did not reach an agreement; or that the opposing party failed to respond to efforts to meet and confer. (Code Civ. Proc., § 430.41 subd. (a)(3).)

Cross-Defendant did not comply with the Court's order. As of August 13, 2026, Cross-Defendant did not file the required declaration.

As Cross-Defendant failed to comply with the Court's order or its statutory obligations, Cross-Defendant's demurrer is taken off calendar.